

While the Declaration of Counsel indicates service of the moving papers by personal service, it fails to evidence when service was made, fails to evidence service of the Notice of Hearing, and states that a Proof of Service will be filed.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.)

The moving party also failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY’S MOTION TO COMPEL
COMPLIANCE WITH SUBPOENAS TO DLA PIPER LLP

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Federal Insurance Company (“**Federal**”) moves, pursuant to Code of Civil Procedure section 2031.310,⁴ to compel: (i) third-party DLA Piper LLP (“**DLA Piper**”) to produce documents pursuant to Federal’s January 30, 2026 Subpoena to DLA Piper; and (ii) Plaintiffs Thomas Pollock (“**Pollock**”), Eileen Tabios, and Galatea Vineyards and Winery, LLC (collectively, “**Plaintiffs**”) to produce a supplemental privilege log identifying the names of all senders, recipients, and copyees of the documents at entry nos. 1, 3, and 4, which were

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

withheld from DLA Piper’s production responsive to Federal’s December 10, 2026 Subpoena based on Plaintiffs’ assertions of privilege.

DLA Piper and Plaintiffs filed a joint opposition. They first note the procedural irregularity of Federal combining distinct discovery disputes, with differing standards, burdens, and factual issues, against a party and non-party separately, into a single motion. The Court agrees with DLA Piper and Plaintiffs that Federal’s proceeding by a single motion as to separate disputes relating to separate subpoenas is unhelpful to the analysis of the discrete issues. However, DLA Piper and Plaintiffs provide no authority prohibiting this course of proceeding, and have provided substantive oppositions to each issue. The Court first discusses the relevant background as to both issues together and then breaks down each issue / “motion” separately.

B. RELEVANT BACKGROUND

The present matter arises from a fire insurance dispute regarding Plaintiffs’ residence following a June 2024 fire, known as the Crystal Fire, allegedly started by a neighboring property. (Second Amended Complaint (“**SAC**”), ¶ 21.) Plaintiffs and Federal are also separately litigating a fire insurance dispute related to Plaintiffs’ property following the 2020 Glass Fire. (*Id.*, ¶¶ 37-41.)⁵ Plaintiffs allege that the 2024 fire caused additional extensive damage to their property, including knocking out the electricity and water servicing the property. (*Id.*, ¶ 44.) The SAC asserts 15 total causes of action, eight of which are asserted against Federal for: Unfair and Unlawful Business Practices, Breach of Contract, Declaratory Judgment, Breach of Implied Covenant of Good Faith and Fair Dealing, Negligent Misrepresentation, Fraud, Elder Abuse, and Negligence. (*Id.*, pp. 32-52.)

On December 10, 2025, Federal issued a subpoena to DLA Piper (“**December Subpoena**”). (Declaration of Brittany Fowler (“**Fowler Decl.**”), ¶ 6, Exh. 1.) DLA Piper was Pollock’s employer from August 1, 2023 to July 24, 2025, where Pollock worked as a corporate attorney. (*Id.*, Exh. 5, at 21-22.) Pollock attributes his separation from DLA Piper to Federal’s purported conduct, and he seeks lost income of more than \$58,000 per month, representing his monthly compensation at DLA Piper. (*Id.*, Exh. 5, at 25-27 [“Plaintiff had been unable to fully perform his professional obligations to DLA Piper LLP (US) due to the significant time and resources required to investigate, document, and seek relief for his claims against Defendants as well as meet those obligations that Chubb refused to assist with and/or exacerbated in violation of Plaintiffs’ insurance policy covering the time period of the June 5, 2024 Fire.”].)

The December Subpoena requested, in relevant part, communications relating to the June 2024 fire, the Glass Fire, and Plaintiff’s insurance claims arising out of the fires, which request was further narrowed by the parties to only such communications that related to Plaintiff’s work on his own case, as opposed to DLA Piper’s communications in general. (*Id.*, Exhs. 1, 9, 15.) Plaintiffs and DLA Piper objected to the December Subpoena on attorney client privilege grounds. (*Id.*, Exhs. 3-4, 11.)

On January 30, 2026, Federal issued a further subpoena to DLA Piper (“**January Subpoena**”), requesting DLA Piper’s policies relating to the use of email or internet at DLA

⁵ *Pollock v. Federal Ins. Co.*, Case No. 3:21-cv-09975-JCS (N.D. Cal.). (See Opposition, 5:8-12.)

Piper from July 1, 2023 to August 1, 2025. (*Id.*, Exh. 2.) The purpose of the January Subpoena was to test Plaintiffs’ privilege objection as to the responsive documents withheld from the December Subpoena. (Mem., 1:3-12, 2:19-26; Fowler Decl., Exh. 9.) DLA Piper objected to the January Subpoena, asserting that the information is not reasonably calculated to lead to the discovery of relevant, admissible evidence; the request is overbroad and unduly burdensome to DLA Piper as a third party; and the request seeks confidential and proprietary information which DLA Piper has taken precautions to protect the disclosure thereof. (*Id.*, Exhs. 8, 11.)

Following the parties’ meet and confer efforts, DLA Piper/Plaintiffs produced documents responsive to the December Subpoena and provided Federal with a privilege log reflecting 18 documents that were withheld from the production, based on Plaintiff’s privilege objections. (*Id.*, Exh. 12.) DLA Piper explained that it reviewed its documents for responsiveness and transferred all responsive documents to Plaintiffs’ counsel, who reviewed and logged them for privilege and produced the non-privileged ones. (*Id.*, Exhs. 10, 15.) DLA Piper has not produced any documents responsive to the January Subpoena, asserting that any such documents contain confidential and propriety information.

C. MOTION TO COMPEL DLA PIPER’S COMPLIANCE WITH JANUARY SUBPOENA

1. Legal Standard

Federal fails to cite any applicable statutory authority in support of its motion. Section 2031.310, cited in the Notice of Motion, applies only to *parties*. Nevertheless, DLA Piper acknowledges the governing statutory authority—section 1987.1—in Opposition and substantively responds. (See Opposition, 7:9-10.) Thus, the Court overlooks the deficiency.

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein ... the court, upon motion reasonably made by [a party] ... after giving counsel notice and an opportunity to be heard, may make an order ... directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (§ 1987.1, subds. (a)-(b).)

Pursuant to California’s Civil Discovery Act, a civil litigant’s right to discovery is broad. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010; see *Davies v. Super. Ct.* (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].)

A party moving to compel a non-party’s compliance with a document subpoena must set forth specific facts showing good cause justifying the discovery sought by the subpoena. (*Calcor Space Facility, Inc. v. Sup.Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 223-24.) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of

relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

2. Discussion

DLA Piper objected to the January Subpoena on the ground that their firm policies on email and internet use contain confidential and propriety information. DLA Piper does not assert a claim of privilege or attorney work product. Thus, Federal can meet its burden on the motion to show good cause by a fact-specific showing of relevance—*i.e.*, how the discovery sought might reasonably assist it in evaluating its case, preparing for trial, or facilitating a settlement. The Court finds that Federal has failed to meet its burden.

Federal argues that DLA Piper’s policies will assist Federal in assessing Plaintiffs/DLA Piper’s claim of privilege for documents withheld in response to Federal’s December Subpoena. Specifically, Federal argues that DLA Piper’s policies will assist it in exploring Pollock’s reasonable expectation of privacy in those emails, a factor to be considered when balancing the competing interests of privilege and disclosure. Federal goes on: “If DLA Piper informed Mr. Pollock that his firm email accounts were ‘not private, may be monitored,’ or ‘may be used only for business purposes,’ he may have consented to disclosure of emails sent or received by those accounts and therefore waived any privilege over those communications.” (Mem., 6:17-20.)

Federal’s moving papers make clear that it does not contend that DLA Piper’s policies are *directly* relevant to the case. Rather, Federal’s argument is solely that the policies are reasonably calculated to lead to the discovery of other relevant and potentially discoverable evidence—*i.e.*, the emails withheld from the December Subpoena. In this indirect scenario, a showing of fact-specific relevance for the policies necessarily includes a showing of relevance for the underlying emails. In other words, the fact that the policies might be relevant, in general, to a party’s assessment of a privilege is not a fact-specific showing of relevance to *this case*.

The Court understands that the present motion is not one to compel production of the underlying emails, *i.e.*, to defeat the privilege objections (for which there is no doubt Federal must show “good cause” for the underlying emails). However, the *only* purpose/relevance advanced by Federal for compelling the subject policies is to challenge the privilege objections asserted with respect to the withheld emails responsive to the December Subpoena. The Court can think of no other use for the policies, and Federal has articulated none. If the sole purpose/relevance of the policies is to challenge the privilege asserted for the underlying emails, the relevance of the underlying emails should be discussed. (See *Williams v. Sup. Ct.* (2015) 236 Cal.App.4th 1151 [“To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.”].)

Thus, even assuming *arguendo* that Federal has shown that DLA Piper's policies are relevant to the general assessment of privilege objections, Federal has failed to show the relevance of the subject emails for which the privilege objections were asserted, and for which the policies are purportedly relevant. The fact that the underlying emails may be "responsive" to the December Subpoena, and Federal's cursory attempt in one sentence to explain the purpose of the December Subpoena is insufficient. (See Mem., 2:7-9.)

Even considering Federal's brief explanation for the December Subpoena, the precise relevance of the withheld emails to the case is not clear to the Court. According to Federal, the December Subpoena was issued to request documents "narrowly tailored to the issues relevant in this case." (Mem., 2:10-12.) The only relevance of DLA Piper to this case, as articulated by Federal's Motion, is that Pollock is claiming lost income damages from his former employment with DLA Piper. (Mem., 2:7-9.) The withheld emails, pertaining to Pollock's work on his own case against Federal, do not immediately strike the Court as relevant to Pollock's lost income claim. To the extent Federal is contending that it subpoenaed Pollock's former employer to discover Pollock's communications regarding the present case, Federal does not explain (or show with evidentiary support) why it believes DLA Piper would have such responsive documents (although that fact appears to be undisputed), nor does Federal discuss the facts of the present case at all to show the relevance of the discovery requests to the case. The Court's understanding of the facts of the case came entirely from its review of the SAC. While the Court reviewed the SAC on its own to get up to speed on the facts, it is not the Court's obligation to apply those facts to a moving parties' theories where the party has failed to do so. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.)

Because Federal has failed to show the relevance of the underlying emails for which it contends the policies are relevant, the Court is unable to find fact-specific relevance of, or "good cause" for, the policies themselves. Thus, Federal has failed to meet its burden on the Motion, and the burden does not shift to DLA Piper/Plaintiffs to justify their objections. The Motion to compel DLA Piper to comply with the January Subpoena is therefore DENIED. This ruling renders it unnecessary for the Court to consider DLA Piper/Plaintiffs' additional arguments in Opposition, including that the policies are not relevant to assessing privilege in the first place and that their objections are justified.

D. MOTION TO COMPEL PLAINTIFFS TO PRODUCE A SUPPLEMENTAL PRIVILEGE LOG IDENTIFYING NAMES IN CONNECTION WITH DOCUMENTS WITHHELD FROM DLA PIPER'S PRODUCTION RESPONSIVE TO THE DECEMBER SUBPOENA

1. Legal Standard

Federal fails to discuss any statutory authority governing privilege logs, or *any* authority in support of a motion to compel a privilege log. Nevertheless, DLA Piper/Plaintiffs substantively respond to the argument. (See Opposition, pp. 13-17.) Thus, the Court overlooks the deficiency.

The parties appear to agree that, although the December Subpoena was directed toward DLA Piper, DLA Piper has completed its obligations thereunder (reviewing and collecting responsive documents), and that the responsive documents are now in the possession, custody, and control of Plaintiffs, who made the decision of which documents to withhold or produce and who prepared the subject privilege log. In this context, the Court finds it appropriate to apply authority governing *party* discovery to Federal's request to compel a supplemental privilege log.

A party responding to document demands with an objection based on a claim of privilege must (1) identify "with particularity" the document falling within any category of demand to which the objection is being made; (2) set forth clearly the extent of the objection; and (3) provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log. (§ 2031.240, subds. (b), (c)(1).) When there are purported deficiencies in the responding party's privilege log, "the propounding party's remedy [is] to compel the responding party to provide a more detailed privilege log that identifie[s] each document with particularity and to present sufficient factual information to allow the propounding party and the court to evaluate each privilege claim." (*Catalina Island Yacht Club v. Sup. Ct.* (2015) 242 Cal.App.4th 1116, 1128.)

2. Discussion

Federal seeks an order compelling Plaintiffs to produce a supplemental privilege log identifying all individuals who sent, received, or were copied on three specified documents withheld from DLA Piper's production, at entry nos. 1, 3, and 4.

The three withheld documents are responsive to two categories of document demands to DLA Piper: (1) all documents and communications relating to the Crystal Fire or Glass Fire on the Property and (2) all documents and communications relating to Pollock's insurance claims at the Property arising out of the Crystal Fire or the Glass Fire. (See Separate Statement, pp. 1, 6.) Plaintiffs withheld a single individual's name from all three documents on privilege and third-party privacy grounds. (Fowler Decl., Exh. 18; Declaration of April M. Strauss ("Strauss Decl."), Exh. 1 (Declaration of Thomas Pollock, ¶ 2).)

Plaintiffs advance three arguments in Opposition. First, Plaintiffs argue that Federal does not identify *why* the name of the prospective client is necessary to evaluate the privilege claim and that, to the contrary, it is not necessary.

Plaintiffs additionally argue that they are entitled to conceal this information because disclosure of the identity would necessarily reveal the substance of the confidential communication in violation of the principle in *Rosso, Johnson, Rosso & Ebersold v. Sup. Ct.* (1987) 191 Cal.App.3d 1514, 1519 ["Since disclosure here reveals the problem of the client, this is one of the exceptional cases where the identity of the client should be protected."] Plaintiffs explain that: "In determining how [the December Subpoena] was to be fulfilled, counsel for DLA Piper and counsel for Federal agreed upon four search terms DLA Piper would use in identifying potentially responsive documents: 'Galatea,' 'fire,' 'Chubb,' and 'Crystal Springs.'" Under these circumstances, disclosure of the prospective client's identity would not merely reveal the identity of a third party. Because the documents were identified solely through the

agreed keyword search methodology, disclosure of that individual's identity would necessarily disclose confidential information concerning the subject matter of the consultation and the legal issues for which advice was sought. In this context, the prospective client's identity is inseparable from the substance of the confidential communication, and disclosure of that identity would therefore invade the attorney-client privilege." (Opposition, 15:9-18.)

Finally, Plaintiffs argue that Federal cannot satisfy the balancing test required to overcome the privacy interest here. In support of the privacy interest, Plaintiffs offer evidence that Pollock has confirmed that the prospective client whose name has been withheld wishes to preserve his/hers/their privilege and privacy rights and does not want their identity disclosed. (Strauss Decl., Exh. 1, ¶ 2.)

As to Plaintiffs' first argument regarding Federal's failure to explain why the identity of the client is necessary to evaluate the privilege claim, Federal argues that it did explain this at pages 8-12 of its Motion, and that it is Plaintiffs' burden of establishing the preliminary facts necessary to support their privileged claim. (Reply, 8:8-9.)

Federal is mistaken for the following two reasons.

First, the "general principle [is] that a party who seeks a court's action in his favor bears the burden of persuasion thereon." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Thus, Federal carries the initial burden of persuasion for its requested relief—i.e., the need for the individual's identity. The *most* Federal states in terms of the need for the individual's identity is: "Without knowing who the participants are, Federal cannot assess whether the communications were truly made in furtherance of an attorney-client relationship or whether other exceptions apply." (Reply, 8:14-16; see also Mem., 11:7-9; Separate Statement, 4:26-5:1, 9:12-14.) This is vague and conclusory, and does not persuade the Court that the concealed identity prevents Federal from evaluating Plaintiffs' claim of privilege. Federal does not discuss the authority or standard for evaluating the attorney-client privilege, or articulate how the identity might make or break that evaluation. Nor does Federal offer any potential categories of exceptions, the applicability of which depend on an individual's identity.

Second, given that the statutory requirement for a privilege log falls under section 2031.310, it reasonably follows that the procedural requirements for a motion under section 2031.310 apply. That includes, as an initial matter, the moving party's burden of "set[ting] forth specific facts showing good cause justifying the discovery sought by the demand." (§ 2031.310, subd. (b)(1).) Thus, before reaching the merits of the parties' arguments as to the sufficiency of the privilege log, Federal has the burden to show there would be good cause for the production of documents appearing on the privilege log in the first place. As noted in the preceding Section C.2., Federal has failed to advance any good cause for the subject document demands in its December Subpoena to DLA Piper.

Based on the foregoing, Federal has failed to meet its burden on the motion. Thus, the motion to compel Plaintiffs to produce a supplemental privilege log is DENIED. This renders it unnecessary for the Court to consider Plaintiffs' additional arguments in Opposition, including

that it is entitled to conceal the identity because disclosure would necessarily reveal the substance of the confidential communication and that privacy interests outweigh disclosure.

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Jeffrey Fallin v. Thomas Orlando et al

25CV002076

ANGEL'S TREE CARE CORPORATION'S GENERAL AND SPECIAL DEMURRER TO JEFFREY FALLIN'S COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Defendant Angel's Tree Care Corporation (ATC) is granted 10 Court days' leave from entry of the instant order to answer the Complaint.

A. PRELIMINARY MATTERS

Defendant, Cross Defendant and Cross-Complainant Angel's Tree Care Corporation (ATC) demurs, pursuant to Code of Civil Procedure 430.10, subdivisions (e) and (f), to each cause of action asserted by Plaintiff Jeffrey Fallin through his complaint (Complaint). ATC contends that the Complaint fails to allege facts sufficient to state a claim, and that the Complaint is fatally uncertain.

The gravamen of the Complaint is that Mr. Fallin suffered damages when ATC, at the direction of co-defendant Thomas Orlando, and without Mr. Fallin's permission, cut-down, destroyed, and removed "ten (10) large established shrubs" and "eight (8) mature and living trees" from Mr. Fallin's property. The Complaint purports to asserts claims against ATC for Trespass, Negligence, and Negligent, as well as Willful Trespass to Timber.

B. LEGAL BACKGROUND

A complaint must contain "facts constituting the cause of action." (Code Civ. Proc., § 425.10, subd. (a)(1).) "The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . (e) The pleading does not state facts sufficient to constitute a cause of action . . . [and/or] . . . (f) The pleading is uncertain." (Code Civ. Proc., § 430.10.)

A demurrer on grounds that a plaintiff has failed to state a claim is treated as "admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such a demurrer "'does not admit . . . facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.' [Citation.]" (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must "construe the allegations of a complaint liberally in favor of the pleader." (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because, "[a] demurrer tests only the legal sufficiency of the pleading...the question of plaintiff's ability to